

## Ranveer Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 July 2022 · WRIT - C No. 18199 of 2022 · **Writ disposed without merits; liberty to file a Para 6.8 objection within four weeks, to be decided within the next four weeks after hearing; coercive recovery stayed for eight weeks or until disposal of the objection, whichever is earlier.**

### HEADNOTE

A consumer challenged a distribution licensee's demand notice of Rs. 7,67,792 in writ. Counsel for the licensee stated that an objection could be filed and would be decided in a time-bound manner. Without examining the merits, the Allahabad High Court disposed of the petition, granting liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing a decision in accordance with law within the following four weeks after hearing, and staying coercive action for eight weeks or until disposal of the objection, whichever is earlier.

### FACTUAL SUMMARY

The petitioner, Ranveer Singh, approached the Allahabad High Court seeking certiorari to quash a demand notice dated 16 June 2020 issued by respondent no. 4, the Power Distribution Corporation, for Rs. 7,67,792, and a mandamus restraining recovery of that amount. Counsel for the corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

objection-to-demand-alternate-remedy

#### HOLDING

Without expressing any opinion on the merits of the challenge to the demand notice, the Court disposed of the writ, granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing; coercive action pursuant to the demand shall not be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

### PRINCIPLE TAGS

**assessment-6.8-alternate-remedy** The writ against the demand notice was disposed of without merits and the consumer was relegated to an objection under Para 6.8 of the Supply Code as the proper forum. ¶ 1

**pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** Liberty to file the Para 6.8 objection within four weeks; if filed, reasoned decision after hearing within the next four weeks; coercive recovery stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 16.6.2020 AND LIABILITY TO PAY RS. 7,67,792

The Court expressly declined to express any opinion on the merits. ¶ 1